

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #04	CCRB Case #: 201802015	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 03/12/2018 10:00 AM	Location of Incident: Manhattan Central Booking Main Holding Pen	18 Mo. SOL 9/12/2019	Precinct: 05		
Date/Time CV Reported Mon, 03/12/2018 11:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/12/2018 11:50 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Charles Hillery	07731	944653	MAN CT

Officer(s)	Allegation	Investigator Recommendation
A . POM Charles Hillery	Off. Language: Police Officer Charles Hillery made remarks to § 87(2)(b) based upon her gender.	A . Substantiated
B . POM Charles Hillery	Discourtesy: Police Officer Charles Hillery spoke discourteously to § 87(2)(b)	B . Substantiated
C . POM Charles Hillery	Abuse: Police Officer Charles Hillery threatened § 87(2)(b) with the use of force.	C . Substantiated
D . POM Charles Hillery	Abuse: Police Officer Charles Hillery threatened § 87(2)(b) with the use of force.	D . Substantiated
E . POM Charles Hillery	Discourtesy: Police Officer Charles Hillery spoke discourteously to § 87(2)(b)	E . Substantiated
F . POM Charles Hillery	Off. Language: Police Officer Charles Hillery made remarks to § 87(2)(b) based upon race.	F . Unsubstantiated
G . POM Charles Hillery	Off. Language: Police Officer Charles Hillery made remarks to § 87(2)(b) based upon race.	G . Unsubstantiated

Case Summary

On March 12, 2018, § 87(2)(b) filed this complaint on behalf of herself and her co-worker § 87(2)(b) with the CCRB via the Call Processing System.

On March 12, 2018, at approximately 10 a.m., PO Charles Hillery of Manhattan Court Section used profanity toward § 87(2)(b) and referred to her as a “bitch” inside Manhattan Central Booking (**Allegation A – Offensive Language, Substantiated**). PO Hillery also said, “Fuck you,” (**Allegation B – Discourtesy, Substantiated**), and “You need to put something in that big ass mouth of yours, and I’m the one to put it in your mouth” (**Allegation C – Abuse of Authority, Substantiated**). PO Hillery threatened to fight § 87(2)(b) (**Allegation D – Abuse of Authority, Substantiated**), and PO Hillery used profanity toward § 87(2)(b) (**Allegation E – Discourtesy, Substantiated**). PO Hillery allegedly referred to § 87(2)(b) as a “black bitch” (**Allegation F – Offensive Language, Unsubstantiated**). PO Hillery allegedly said, “I’m going to fuck this nigga up” to § 87(2)(b) (**Allegation G – Offensive Language, Unsubstantiated**).

There is no video footage of this incident.

No arrests or summonses resulted from this incident.

Findings and Recommendations

Allegation A – Offensive Language: Police Officer Charles Hillery made remarks to § 87(2)(b) based upon gender.

Allegation B – Discourtesy: Police Officer Charles Hillery spoke discourteously to § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Charles Hillery threatened § 87(2)(b) with the use of force.

Allegation D – Abuse of Authority: Police Officer Charles Hillery threatened § 87(2)(b) with the use of force.

Allegation E – Discourtesy: Police Officer Charles Hillery spoke discourteously to § 87(2)(b)

During this incident, § 87(2)(b) was working as a correction officer with fellow correction officers § 87(2)(b) and § 87(2)(b) at Manhattan Central Booking. Their responsibilities were to supervise the prisoners in the basement holding cells.

It is undisputed that PO Hillery entered the holding cell area to escort prisoners to court, failed to sign a prisoner out of the holding cells, and that PO Hillery and § 87(2)(b) argued about his failure to sign the log book.

According to § 87(2)(b) (BR 01), PO Hillery returned to the basement after she notified him that he forgot to sign the log book. PO Hillery immediately made disrespectful remarks toward her, saying “That bitch right there. I heard her big ass mouth all the way upstairs. Yeah, bitch, I’m talking to you. You need to put something in that big ass mouth of yours, and I’m the one to put it in your mouth. Fuck you, bitch. Like I said, you think you all that. You think you run shit.” § 87(2)(b) responded by calling her supervisor, Captain § 87(2)(b). PO Hillery said, “Bitch, now you want to make phone calls? You can call whoever you want.”

§ 87(2)(b) approached PO Hillery and told him to stop speaking to § 87(2)(b). PO Hillery then said, “Mind your fucking business. Who the fuck are you? She wasn’t doing me no fucking favor. She needs to mind her fucking business. You know what? Me and you can do this. We can handle this man to man.”

§ 87(2)(b) (BR 02) did not recall everything that PO Hillery said to § 87(2)(b) but he confirmed that they argued and that PO Hillery threatened to put something in § 87(2)(b)'s mouth. According to § 87(2)(b) he told PO Hillery not to speak disrespectfully to § 87(2)(b) and then said, "We can take this outside if you want." At the time of his CCRB interview, § 87(2)(b) did not recall exactly what PO Hillery replied.

Captain § 87(2)(b) (BR 03) entered the holding cell area shortly after PO Hillery departed. She instructed the correction officers to prepare memos describing the incident, and they did so.

§ 87(2)(b) wrote in his memo (BR 09) that PO Hillery said to § 87(2)(b) "I heard your fucking mouth all the way upstairs, and if you keep talking I'm going to put something in your mouth, bitch." § 87(2)(b) wrote that PO Hillery said to him, "Fuck you, what you going to do? I will fuck you up." § 87(2)(b) reviewed his memo and acknowledged that it was correct and that it refreshed his recollection that PO Hillery had made those comments toward him and § 87(2)(b).

§ 87(2)(b)'s memo (BR 08) was consistent with her CCRB statement and with § 87(2)(b)'s memo.

According to PO Hillery (BR 07), he entered the holding cell area alone, and § 87(2)(b) immediately yelled and used profanity toward him. PO Hillery acknowledged that he then used profanity toward § 87(2)(b) but did not recall exactly what he said. PO Hillery used profanity because he was in a "heated" argument with § 87(2)(b). PO Hillery denied that he threatened to put something inside § 87(2)(b)'s mouth.

During PO Hillery's argument with § 87(2)(b), § 87(2)(b) said to PO Hillery, "We can take this outside." PO Hillery interpreted § 87(2)(b)'s comment as an invitation to fight, and PO Hillery responded by saying, "We can do this right here." PO Hillery made that comment to indicate that he was willing to fight § 87(2)(b) in the holding cell area as opposed to outside. PO Hillery did not recall if he used profanity toward § 87(2)(b).

§ 87(2)(b) (BR 04), § 87(2)(b) (BR 06), and § 87(2)(b) (BR 05) were consistent with § 87(2)(b) and § 87(2)(b) in stating that PO Hillery threatened to put something in § 87(2)(b)'s mouth. They did not initially recall anything else that PO Hillery said to § 87(2)(b) due to the surprising nature of the situation.

§ 87(2)(b) did not recall exactly what § 87(2)(b) and PO Hillery said to each other. § 87(2)(b) heard PO Hillery use profanity toward § 87(2)(b) but did not recall exactly what PO Hillery said. § 87(2)(b) heard both § 87(2)(b) and PO Hillery threaten to fight each other but did not recall anything else that they said.

The memos (BR 08-12) prepared by all of the above correction officers noted that PO Hillery used profanity toward § 87(2)(b) saying such things as, "I heard your fucking mouth all the way upstairs. I'm going to put something in your mouth, bitch. Shut the fuck up. I don't give a shit."

§ 87(2)(b) and § 87(2)(b)'s (BR 11) memos were consistent in noting that PO Hillery threatened to fight § 87(2)(b).

§ 87(2)(b) (BR 12) and § 87(2)(b)'s (BR 10) memos generally noted that § 87(2)(b) and PO Hillery argued but did not mention any specifics of the argument.

All the correction officers reviewed their respective memos during their interviews. They confirmed that the statements contained therein accurately characterized the incident and that the memos were prepared immediately after PO Hillery exited the holding cell area.

Multiple prisoners were inside the holding cells at the time of the incident, and some may have been able to hear the incident. The investigation attempted to locate potential prisoner witnesses but was unable to contact any prisoner who witnessed the incident (BR 15).

Officers must be courteous and respectful in their interactions with others. Patrol Guide Procedure 203-09 (BR 13) Force may be used when it is reasonable to ensure the safety of a member of the service or a third person or otherwise protect life or when it is reasonable to place a person in custody or to prevent escape from custody. Patrol Guide Procedure 221-01 (BR 14)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations A, B, C, D, and E** be closed as **Substantiated**.

Allegation F – Offensive Language: Police Officer Charles Hillery made remarks to § 87(2)(b) based upon race.

Allegation G – Offensive Language: Police Officer Charles Hillery made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that PO Hillery referred to her as a “black bitch” in reference to her status as a black female. She also alleged that PO Hillery said, “I’m going to fuck this nigga up” to § 87(2)(b).

§ 87(2)(b) stated that PO Hillery only said, “I will fuck you up,” and he did not allege that PO Hillery made any derogatory comments towards him regarding his race as a black male.

None of the other correction officers specifically recalled exactly what PO Hillery said to § 87(2)(b) and § 87(2)(b) beyond the fact that he threatened to put something in § 87(2)(b) s mouth. Neither § 87(2)(b) nor any of the other correction officers heard PO Hillery refer to § 87(2)(b) as a “black bitch.” None of the other correction officers testified that PO Hillery said, “I’m going to fuck this nigga up” to § 87(2)(b).

§ 87(2)(b) documented in her DOC memo that PO Hillery referred to her as a “black bitch,” but none of the other correction officers documented that comment. None of the correction officers, including § 87(2)(b) documented in their memos that PO Hillery said, “I’m going to fuck this nigga up” to § 87(2)(b).

PO Hillery denied that he referred to § 87(2)(b) as a “black bitch” and denied saying “I’m going to fuck this nigga up” to § 87(2)(b). PO Hillery denied making any comment about § 87(2)(b) or § 87(2)(b) s race.

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegation F and Allegation G** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

This is the first CCRB complaint to which both § 87(2)(b) and § 87(2)(b) have been a party (BR 17).

PO Hillery has been a member of service for 10 years and has been a subject in three prior complaints and 10 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

§ 87(2)(b) declined to mediate the complaint § 87(2)(b)

On May 29, 2018, a notice of claim request was submitted to the Comptroller's Office, and the result will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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